

HOUSE BILL 1861

By Brooks

AN ACT to amend Tennessee Code Annotated, Title 40,
Chapter 35, relative to revocation of probation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-35-311, is amended by adding the following as a new subsection:

(h) Notwithstanding this section or another law to the contrary, if the trial judge finds by a preponderance of the evidence that the defendant has violated conditions of probation and suspension of sentence for a felony offense by engaging in conduct that constitutes a drug offense under title 39, chapter 17, part 4, then for the first instance of such a violation of conditions of probation and suspension of sentence, the trial judge shall order the defendant to attend a substance abuse treatment program and shall not revoke the defendant's probation and suspension of sentence.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.